

Trial Readiness Statement

Form 22

Provincial Court Family Court Rules
Rule 110

COURT STAMP

Registry location:

Court file number:

Document number:

For registry use only

This Trial Readiness Statement helps the parties and the court to plan for a trial.

Please read before completing the form:

- You must complete this form only if you are scheduled for a trial preparation conference or you were directed or ordered by the court to complete a Trial Readiness Statement.
- For guidance filling in this form, please read the guidebook. The guide is available online at www.gov.bc.ca/court-forms or from your local court registry.

Part 1 | Parties and lawyers at trial

- My full name is
Full name of party
- Select whichever option is correct and provide the additional information, as applicable
 - ☐ I do not have a lawyer for the trial
 - ☐ I will have the following lawyer representing me at the trial:

Full name of lawyer
- The other party's full name is:
Full name of party/parties
- Complete only if applicable. You may leave this section blank.
The lawyer for the child(ren) is:
Full name of lawyer



You must serve each other party with a copy of the trial readiness statement at least 7 days before the date of the trial preparation conference or as ordered by the court.

Part 2 | Issues for trial

- The following issues are to be decided at trial:
 - ☐ Parental responsibilities
 - ☐ Parenting time
 - ☐ Child support
 - ☐ Contact with a child
 - ☐ Guardianship of a child
 - ☐ Spousal support
 - ☐ Property division in respect of a companion animal
 - ☐ Protection order
 - ☐ Priority parenting matter (specify):
 - ☐ Relocation
 - ☐ Other (specify):

Part 3 | Background information

- Have you attended a family settlement conference?
☐ Yes ☐ No
- Are there ongoing settlement discussions?
☐ Yes ☐ No
↳ If yes, is there likelihood of resolution before the trial?
☐ Yes ☐ No



A family settlement conference is a type of court appearance [Part 8 - Provincial Court Family Rules].

8. There is an **existing court order** involving one or more of the parties, and/or the child(ren) about the following:

Select all options that apply

- ☐ Interim order about the issue to be determined at trial
- ☐ Order under the *Child, Family and Community Service Act*
- ☐ Supreme Court order under the *Family Law Act* or *Divorce Act*
- ☐ Section 183 *Family Law Act* protection order

Expiry date:

(dd/mm/yyyy)

- ☐ Section 810 Criminal Code peace bond

Expiry date:

(dd/mm/yyyy)

- ☐ Section 515 Criminal Code bail order

Expiry date:

(dd/mm/yyyy)

- ☐ Criminal Code probation order

Expiry date:

(dd/mm/yyyy)

- ☐ Other order that would affect the conduct of the trial (*specify*):

- ☐ None of the above



For more information about these types of orders, see the guidebook.

Part 4 | Disclosure of information

9. Please select the correct statement

- ☐ The issue(s) to be determined at trial **do not include a support issue**
- ☐ My **financial information** on file with the court **is current**
- ☐ There have been **changes to my financial information** since I filed the Financial Statement



This part will help the court to understand what information needs to be shared between the parties to help get ready for the trial.

10. I have **provided each other party with a copy of the information I plan to rely on** during the trial, including financial information, documents, and a list of witnesses

- ☐ **Yes** ☐ **No**

↳ If no, when can these be provided to the parties?

11. Is there any information you still need from the other party, including financial information, documents, or a list of witnesses?

- ☐ **Yes** ☐ **No**

↳ If yes, please explain what information you need:

Part 5 | Witnesses

12. I plan to have the following people **attend as witnesses** in this trial:

Include your own name on the list if you plan to provide evidence

Witness names:

- (1)
(2)
(3)
(4)
(5)
(6)



A witness must have direct knowledge of the things you want them to give evidence about. The evidence must also be relevant to the issues to be decided at trial.

13. Is there any witness or party travelling from another community to attend the trial?

- ☐ **Yes** ☐ **No**

14. Are there **expert reports**?

☐ **Yes** ☐ **No** ☐ **Unknown**

↳ *If yes, please answer the following questions:*

(a) Has the report been provided to the other party?

☐ **Yes** ☐ **No**

(b) Will the expert be called as a witness at the trial to provide opinion evidence or to be asked questions?

☐ **Yes** ☐ **No** ☐ **Unknown**

15. Has a report been ordered for **views of the child** or **under section 211** of the *Family Law Act* including for the assessment of the needs of a child, the views of a child, and/or the ability and willingness of a party to satisfy the needs of a child?

☐ **Yes** ☐ **No**

↳ *If yes, please answer the following questions:*

(a) Has the report been completed?

☐ **Yes** ☐ **No**

(b) Is there a court order requiring the person who prepared the report to attend the trial?

☐ **Yes** ☐ **No**

16. I have **confirmed all my witnesses are available** for the trial date(s) **OR I have served them** with a Subpoena to Witness in Form 23:

☐ **Yes** ☐ **No** ☐ **Not applicable**, a trial date has not been scheduled



Expert reports provide information to help the court. They are written by an expert who has special knowledge about a certain area because of their training, education and work experience.



For more information about witnesses, expert reports and section 211 reports, see the guidebook.



If you want a witness to give evidence at your trial, you must make sure they can come to your trial and are ready to give evidence.

Part 6 | Requirements and considerations

17. I have the following special requirements/considerations for the trial:

Select each option that applies and provide the additional information as required

☐ **Technology needs** (*specify*):

☐ **Interpreter** for (*name of party or witness*):

Language (*specify*):

☐ **Safety planning**

Please explain your concerns or why you need a safety plan in place for the courtroom:

☐ **Trial accommodations**, such as allowing evidence by affidavit, video or telephone attendance, or other requested accommodations (*specify*):

☐ **Accommodations for disability**, such as court room access and set up, audio aids, or other accommodations (*specify*):

☐ I have **no special requirements or considerations** for the trial



There are resources available to support individuals at trial at no cost to the person.

Resource availability may be limited in some court locations so early identification and booking may be required.



For more information about bringing a support person with you to trial to provide emotional support, take notes, and help organize documents, see the guidebook.

Part 7 | About the trial

18. Has the trial been scheduled?

☐ Yes ☐ No

↳ If yes, the trial is scheduled for the following date(s):
(Month Day(s), Year)

19. Select whichever statement is correct

☐ I am (will be) **ready to start on the scheduled trial date**
☐ I **will not be ready to start on the scheduled trial date** because:
Explain why you will not be ready on the trial date

20. I believe this trial will take hours or days.

21. I have reviewed the witnesses I plan to call and the information I plan to rely on during trial when I calculated the amount of time needed for trial
☐ Yes ☐ No



Even if your trial has been scheduled, it is helpful if you give the court an estimate of how long you think the trial will take, especially now that you have done some planning. Consider the evidence you plan to present.

Note: A day of court time is approximately 5 hours.

Part 8 | Orders at the Trial Preparation Conference

22. Complete only if applicable. You may leave this question blank.
I will be asking for the following order(s) at the trial preparation conference:



At a trial preparation conference, a judge may make orders or directions [Rule 112]. The orders or directions are usually about how the trial will proceed or things that need to be done before the trial to get ready for it. The judge will be prepared to make some of these orders or directions without you asking, but if there is something specific you need, you can ask here.

Instructions for judicial case manager

To be completed by the Judge if required

To the Judicial Case Manager:

☐ Trial date(s) confirmed as scheduled
☐ Trial to be set for _____ hours or _____ days

Additional comments:

Date: Signature of Judge: